Copyright, Cultural Ecology, and the Dissemination of the Irish Language: A Policy Framework

Introduction

The intersection of intellectual property rights, cultural heritage preservation, and the survival of endangered minority languages presents a highly complex jurisprudential and sociological paradigm. In the context of the Irish language (Gaeilge), the tension between restrictive copyright enforcement and the existential imperative to disseminate educational resources is particularly acute. The formulation of a comprehensive usage policy governing the distribution of public information and public resources in an educational manner must navigate these competing interests with extreme precision. It requires a nuanced understanding of statutory exceptions under Irish and European law, the historical teleology behind minority language publishing, and the broader socio-linguistic crisis facing the Celtic languages.

The late Aodán Mac Póilín, in his seminal collection of essays *Our Tangled Speech: Essays on Language and Culture*, articulated the concept of "cultural ecology".[1] This framework views the death of any language and its associated culture as a loss to the world equivalent to the destruction of a tropical rainforest.[1] Within this cultural ecology, the Irish language is not merely a utilitarian medium of communication but a fragile repository of a unique worldview, history, and identity.[1] The survival of this ecosystem depends entirely on what Mac Póilín identified as the "key goal" of language revival: the creation of new, sustainable language communities where inter-generational language transmission is the norm.[1]

Achieving this goal requires unfettered access to educational materials, historical texts, and linguistic resources. However, the digitization and sharing of previously non-digital Irish language books frequently encounter the chilling effect of copyright law. This report provides an exhaustive analysis of why the educational distribution of such materials does not inherently require permission from the original publisher under specific statutory exceptions.[2] Furthermore, it delineates the fundamental differences between the commercial exploitation historically known as "American copyright piracy" and the digital archiving of endangered cultural heritage.[4]

By examining the contributions of linguistic advocates like Manchán Magan and the tragic phenomenon of the "last speaker," this report establishes a moral, legal, and cultural justification for the unimpeded dissemination of the Irish language.[6] It argues that, in the context of a highly endangered language, the rigid application of commercial copyright principles to orphaned, non-digital educational texts constitutes a profound misreading of both the law and authorial intent. Instead, a robust usage policy must prioritize the "willed reality" of language preservation, ensuring that the pedagogical tools necessary for linguistic survival

remain freely accessible to the communities that depend upon them.[1]

The Jurisprudence of Educational Exceptions in Irish Copyright Law

The formulation of a usage policy permitting the distribution of public resources in an educational manner without publisher permission is firmly grounded in the statutory exceptions provided by Irish copyright law. The primary legislation governing intellectual property in the Republic of Ireland is the *Copyright and Related Rights Act 2000* (CRRA 2000), subsequently updated and modernized by the *Copyright and Other Intellectual Property Law Provisions Act 2019*.[3] These legislative frameworks recognize that the rigid enforcement of the author's limited monopoly must be balanced against the wider public interest in the dissemination of information.[10]

Fair Dealing and the Educational Mandate

Irish copyright law provides specific, limited exceptions that allow for the copying, communication, and use of copyrighted works without infringing upon the rights of the copyright owner, provided these acts are conducted for non-commercial, educational, or research purposes.[2] The doctrine of "fair dealing" explicitly permits the use of protected works for the purposes of criticism, review, news reporting, research, or private study.[2] While the United States relies on the broader, constitutionally derived doctrine of "Fair Use," which is rooted in the freedom of speech, the Irish and UK systems utilize statutory "fair dealing" provisions designed specifically to facilitate the public's access to information without irreparably harming the commercial interests of the copyright holder.[10]

Crucially, the CRRA 2000 contains robust provisions tailored explicitly for educational establishments and instructional use. Section 53 of the Act permits acts done for the purposes of instruction or examination, allowing educators and students to utilize copyrighted materials without seeking prior authorization from publishers.[3] Furthermore, Section 57 permits reprographic copying by educational establishments of certain works, establishing a legal mechanism for the distribution of essential learning materials within a pedagogical environment.[3] Section 330 of the Act extends these protections to databases, stating that the database right is not infringed by fair dealing with a substantial part of its contents by a lawful user (including an educational establishment) where that part is extracted for the purposes of illustration in the course of instruction.[8]

The 2019 amendments to the Act further modernized these exceptions to accommodate digital learning environments. For instance, educational establishments are permitted to share copyrighted work as part of a lesson or examination to enrolled students via a Virtual Learning Environment (VLE), provided that specific conditions—such as limits on the amount of material shared and the requirement of proper attribution—are met.[9]

Statutory Provision (CRRA 2000 & 2019 Amendments)	Scope of Exception	Application to Irish Language Resources

Section 53	Acts done for purposes of instruction or examination.	Allows educators to distribute extracts of Irish texts for classroom analysis and language acquisition without publisher consent.
Section 57	Reprographic copying by educational establishments.	Permits the physical and digital reproduction of out-of-print Irish language textbooks for enrolled student use.
Section 330	Exception for educational establishments regarding database extraction.	Permits the extraction of substantial parts of a database for illustration in teaching, crucial for linguistic databases and digitized dictionaries.
Format Shifting (2019 Act)	Allows archivists to make copies of works in permanent collections in different formats (e.g., physical to digital).	Enables the digitization of deteriorating Irish language manuscripts, legacy media, and non-digital books for preservation and subsequent educational access.

The Digitisation and Preservation Imperative

A critical component of modern educational distribution is the digitization of previously non-digital books. The *Copyright and Other Intellectual Property Law Provisions Act 2019* introduced vital exceptions for libraries and archives regarding format shifting.[9] Under these provisions, archivists are permitted to make a copy of a work in their permanent collection in a different format—such as creating a digital PDF of an out-of-print physical book or digitizing legacy VHS tapes containing native speaker interviews—provided the act is undertaken for preservation or archival purposes and possesses no commercial or indirectly commercial motive.[9]

This legal architecture is further supported by the European Union's *InfoSoc Directive*, which includes an optional exception for educational purposes designed to be technologically neutral, exempting acts of use necessary for both face-to-face teaching and digital education.[14] This aligns with the international "Three-Step Test," which permits exceptions to copyright that do not conflict with a normal exploitation of the work and do not unreasonably prejudice the legitimate interests of the author.[14] Given the highly restricted, entirely non-commercial market for archival Irish language materials, educational digitisation clearly satisfies these criteria.

Furthermore, the legal landscape surrounding "orphan works"—works for which the copyright holder cannot be identified or located—necessitates a pragmatic approach.[10] Many mid-20th-century Irish language publications fall into this category. Cultural institutions and educational bodies increasingly adopt a risk-management approach to the digitization of

orphan works, recognizing that the societal benefit of reviving these texts far outweighs the negligible risk of commercial infringement.[10] Therefore, a usage policy stipulating that the distribution of public information for public resources in an educational manner does not require publisher permission is not an infringement of the law; rather, it is the precise execution of statutory exceptions designed to foster education, linguistic survival, and cultural preservation.

The Teleology of Irish Language Publishing: Dissemination Over Commodification

To properly contextualize the application of copyright law to the Irish language, one must critically examine the teleological purpose of minority language publishing. In dominant, globalized languages, publishing is predominantly a commercial enterprise wherein copyright serves as the primary mechanism to protect financial investments, fence off protected subject matter, and ensure robust profit margins.[11] In stark contrast, the publication of materials in the Irish language—particularly historically—has been driven by an ideological, cultural, and existential imperative to disseminate information and ensure the survival of the language.[1]

Building Sustainable Language Communities

Aodán Mac Póilín's comprehensive analysis in *Our Tangled Speech* highlights that the fundamental objective of the Irish language revival, both north and south of the border, is the establishment of "new sustainable language communities".[1] Mac Póilín noted that the survival of the language is inextricably linked to the survival of its language community, and that creating these communities requires a massive infrastructural support system, including educators, local government, broadcasters, and community activists.[1]

The creation of an Irish language book, pamphlet, or educational resource is fundamentally an act of cultural intervention designed to facilitate what Mac Póilín termed "inter-generational language transmission".[1] The authors, folklorists, and linguists who produced these works did so primarily to document a fragile worldview and to provide pedagogical tools for future generations. Their objective was not the creation of a restricted commercial monopoly, but the absolute maximization of reach and linguistic utility.

This intent fundamentally alters the ethical and practical application of copyright. When an educational entity digitizes an obscure, out-of-print Irish language text from the 1960s and distributes it to students, it is fulfilling the exact purpose for which the book was originally written. To enforce a strict, commercial interpretation of copyright that requires impossible-to-obtain permissions from defunct publishers or deceased authors is to weaponize intellectual property law against the very culture it ostensibly exists to protect. In this paradigm, copyright transitions from a protective shield for the author into a bureaucratic mechanism of cultural asphyxiation.

The Public Good and Shared Heritage

Mac Póilín was a staunch advocate for the "common heritage approach," arguing that linguistic

diversity benefits the entirety of society and that the Irish language should be untangled from reductive political baggage.[1] He viewed the language as an indispensable public resource. His work as Director of the ULTACH Trust involved funding ground-breaking Irish language classes across diverse community centers—including the Ulster People's College, the Shankill Women's Centre, and various Orange halls—proving that the dissemination of the language is a public good that transcends traditional market dynamics and sectarian divides.[1]

In this context, public information pertaining to the Irish language—such as grammar guides, local histories, dictionaries, and folklore collections—must be treated as a communal resource rather than proprietary data. The dissemination of this information is vital to combating the linguistic alienation described by Mac Póilín, particularly in regions like the north-east of the island where historical hostility toward the language has been prevalent.[1] A usage policy that asserts the right to distribute these resources educationally without publisher permission is therefore not merely legally defensible under fair dealing; it is a moral necessity aligned with the foundational goals of the Gaelic revival and the principles of cultural ecology.

Deconstructing the False Equivalency: American Copyright Piracy vs. Cultural Digitisation

A frequent, yet fundamentally flawed, counter-argument against the unauthorized digitization and sharing of copyrighted works is the invocation of "copyright piracy." Critics often equate the unauthorized digital distribution of any text with commercial piracy, drawing parallels to historical and modern intellectual property theft. However, a rigorous historical and macroeconomic analysis demonstrates that the concept of "American copyright piracy" is entirely distinct in motive, execution, and economic impact from the digitisation of previously non-digital Irish books for educational preservation.[4]

The Economic Mechanisms of 19th-Century American Piracy

To understand the distinction, one must examine the historical precedent of American copyright piracy. During the 19th century, the United States operated as a net debtor nation with a rapidly expanding, highly literate population but a relatively nascent domestic literary output.[4] To build domestic literacy, encourage the widespread dissemination of learning, and retain capital within its borders, the U.S. government actively encouraged the unauthorized reprinting of foreign works.[5]

The U.S. Copyright Act of 1790 explicitly authorized American publishers to take free advantage of the cultural output of other countries.[5] For an entire century, the United States refused to sign international copyright treaties, such as the Berne Convention of 1886, allowing American publishing syndicates to mass-produce unauthorized copies of works by European authors for immense commercial profit.[4] This era of American copyright piracy was characterized by several defining macroeconomic traits:

1. **Pure Commercial Motive:** The unauthorized copying was executed by for-profit publishing houses seeking to maximize revenue without paying royalties to foreign creators.[16] Publishers were able to appropriate returns through strategies such as

first-mover advantages, reputation, and price discrimination.[17]

2. **Market Substitution:** The pirated copies directly competed with and substituted the legitimate market for the original authors' works, depriving European writers of massive financial returns.[15]
3. **Industrial Scale:** The piracy was conducted on a massive, industrial scale to supply a hungry commercial market, effectively simulating a legal grant through private means at the expense of the original creators.[5]

The Ecological Imperative of Digitising Irish Texts

The digitisation and sharing of previously non-digital Irish language books stand in stark, absolute contrast to the American commercial piracy model. When an educator, linguist, or cultural heritage institution digitizes an out-of-print Irish language text, the underlying dynamics are the exact inverse of commercial piracy.

Firstly, the motive is purely educational and preservationist. There is no lucrative commercial market for out-of-print, mid-20th-century Irish language educational materials. The act of digitization is not driven by a desire to capture market share, manipulate prices, or enrich a corporate publishing entity. It is driven by the desperate need to prevent the text from succumbing to physical decay and historical oblivion.

Secondly, there is no market substitution because, in the vast majority of cases, the original publisher no longer exists, the book has been out of print for decades, and there is no legitimate commercial avenue through which a student could purchase a new copy.[10] These works are effectively "orphan works." Digitizing these texts does not deprive the author or publisher of revenue; rather, it rescues the work from the total obscurity that the commercial market has relegated it to.

Characteristic	**19th Century American Copyright Piracy**	**Irish Language Educational Digitisation**
Primary Motive	Commercial profit, industrial expansion, and capital retention.	Cultural preservation, education, and linguistic survival.
Economic Impact	Deprived foreign authors of massive, existing royalties; enriched domestic publishers.	Negligible economic impact; revives "orphan works" with no current commercial market viability.
Nature of the Work	Highly popular, commercially viable international literature (e.g., British novels).	Out-of-print, non-digital, specialized minority language texts.
Legal Framework	State-sanctioned refusal to recognize international IP rights for domestic economic advantage.	Executed strictly under statutory exceptions for education, fair dealing, and archival format-shifting.

Therefore, conflating the educational sharing of digitized Irish texts with "copyright piracy" represents a fundamental misunderstanding of both intellectual property law and cultural ecology. Piracy seeks to exploit a vibrant market for unearned profit; digitisation seeks to artificially sustain a fragile cultural ecosystem that the commercial market has abandoned. The articulators of the US doctrine of "Fair Use" and the UK/Irish doctrine of "Fair Dealing" sought to balance the limited monopoly of the copyright holder with the wider public interest in the dissemination of information.[10] In the context of an endangered language, the public interest in dissemination vastly outweighs the theoretical, non-existent commercial monopoly of a long-out-of-print text.

The Lexical Fragility of Irish and the Tragedy of the "Last Speaker"

To truly grasp why the rapid, unimpeded dissemination of digitized Irish resources is not merely a legal technicality but a profound moral imperative, one must understand the extreme fragility of the Irish lexicon. The language is not simply a direct cipher for English; it contains an entirely distinct phenomenological architecture, heavily tied to the landscape, the weather, and an ancient agrarian worldview.[18] The loss of the language equates to the loss of this specific human cognition.

Manchán Magan and the Connection to the Landscape

The late Manchán Magan (1970–2025) was one of the most vital modern articulators of this linguistic richness.[6] As an author, broadcaster, and documentary-maker, Magan dedicated his life to illuminating the depth and vitality of the Irish language, attempting to bridge the ancient and modern worlds.[20] Through seminal works such as *Thirty-Two Words for Field* and *Listen to the Land Speak*, Magan demonstrated how the Irish language possesses wonderfully evocative, hyper-specific ways of describing the natural world—words that have no direct translation in English and which encapsulate centuries of indigenous ecological observation.[18] Magan's deep connection to the language was forged in his youth in the Corca Dhuibhne Gaeltacht in West Kerry, where he was taught Irish by his grandmother, Sighle.[23] Her dedication to the language was deeply intertwined with the historical sacrifice of her uncle, The O'Rahilly, who died during the 1916 Easter Rising.[24] This familial history positioned the language as a sacred cultural inheritance rather than a mere academic subject.[21] Magan's subsequent efforts, including the provocative documentary series *No Béarla*—in which he attempted to navigate Ireland speaking only the first official language—highlighted both the latent, ghostly presence of the language and the severe challenges faced by native and bilingual speakers in a predominantly Anglophone society.[7]

The outpouring of tributes following Magan's untimely passing from terminal prostate cancer in October 2025 underscored his singular role in the cultural ecology of Ireland.[6] As noted by President Michael D. Higgins, Magan's work inspired multiple generations to engage more

deeply with the native language, its cultural richness, and the natural landscape it describes.[21] The gathering of 2,500 people at the ancient Hill of Uisneach to scatter his ashes served as a profound testament to his impact.[6] His passing serves as a stark reminder of the mortality of the individuals who champion and carry the language. When human repositories of such vast, esoteric linguistic knowledge pass away, the urgency to preserve, digitize, and distribute their documented knowledge becomes paramount.

The Eradication of Worldview: The "Last Speaker" Phenomenon

Magan's work continuously pointed to the thousands of highly specific Irish words that are teetering on the edge of extinction. His death inherently resulted in the loss of words with him, as he was a primary custodian of an increasingly rare lexicon. This highlights a recurring, traumatic motif in the history of Celtic languages: the phenomenon of the "last speaker."

A language does not simply fade away in the abstract; it dies in the minds and mouths of specific individuals. Aodán Mac Póilín noted that isolated residual communities and individual native speakers of specific dialects survived in Northern Ireland long after the language ceased to be a majority tongue.[1] The absolute finality of language death is brutally illustrated by historical milestones: the death of the last native speakers of Irish in Armagh and Tyrone in 1969, and the passing of the last speaker of the Rathlin Island dialect of Irish in 1985.[1] Similarly, in the broader Goidelic family, the last native speaker of East Perthshire Scottish Gaelic, Jean Bain, died in 1984.[28]

When the last speaker of a dialect passes away, an entire localized vocabulary, unique syntactical variations, and an irreplaceable perspective on the local environment are extinguished forever. Mac Póilín described this loss as the death of a civilization.[1] Because languages encompass much more than their words—they are a complex of ways of interpreting the world—the death of the last speaker means that "nine tenths of that accumulation of wisdom, speculation and observation" is lost.[1]

In this dire context, previously non-digital books, handwritten manuscripts, out-of-print dictionaries, and old audio recordings are not commercial products; they are the *only* surviving DNA of a deceased cultural organism. They contain the words spoken by those last speakers before they died. To restrict the digitization and educational sharing of these materials out of a misplaced adherence to commercial copyright principles is to actively participate in the final erasure of those lost words. The digitization of these texts is the digital resurrection of the last speaker, allowing modern students to reclaim the vocabulary that died with them.

Dialect / Variant	**Year of Extinction (Native Speakers)**	**Linguistic Impact of Loss**
Armagh and Tyrone Irish	1969	Loss of unique Ulster Gaelic phonetic and lexical variations specific to the inland northern counties.[1]
East Perthshire Gaelic	1984 (Death of Jean Bain)	Extinction of a highly distinct eastern Scottish Gaelic

		dialect.[28]
Rathlin Island Irish	1985	Eradication of the crucial intermediary dialect bridging Irish and Scottish Gaelic.[1]

Our Tangled Speech and the Socio-Political Context of Language Revival

To fully grasp the necessity of freely distributing educational resources, the socio-political context of the Irish language must be acknowledged. In *Our Tangled Speech*, Aodán Mac Póilín provides a masterclass in dissecting the complex, often fraught environment in which the language exists, particularly in Northern Ireland.[1]

Mac Póilín identified that the language movement in the early 20th century became overtly politicized, with the language frequently utilized as an emblem of Irish nationalism and Catholic identity.[1] This politicization alienated a massive section of the population in the north-east of the island.[1] Mac Póilín's essays painstakingly trace the historical realities that contradict these modern sectarian divisions, highlighting the vibrant history of the "Protestant Gaelic Tradition" and the cross-fertilization of Irish, English, and Ulster Scots (Ullans).[1] He points out that in 1820, there were nearly 93,000 Irish speakers in County Down and 141,000 in Tyrone, demonstrating that the language was historically the shared heritage of the entire population, regardless of religious or political affiliation.[1]

The contemporary "cultural war," as described by political figures in Northern Ireland, often reduces both Irish and Ulster Scots to mere territorial markers or weapons in an ideological struggle.[1] Mac Póilín dedicated his life to an alternative view: imagining a society that could embrace linguistic diversity without reductive political baggage.[1] He championed the "common heritage approach," advocating that the language belongs to everyone.[1]

This inclusive philosophy is highly relevant to the policy of educational distribution. If the language is to be successfully de-politicized and offered as a shared cultural resource to all communities—nationalist, unionist, and otherwise—the barriers to accessing the language must be eradicated. Educational resources must be freely available. For an individual from a non-traditional background to engage with the language, they must have frictionless access to the materials necessary to learn it. Digitizing and sharing texts, free from the encumbrance of publisher permission, democratizes the language, aligning perfectly with Mac Póilín's vision of an inclusive, shared cultural heritage.

Defying the Despotism of Fact: Mac Póilín's "Willed Reality"

This moral imperative aligns perfectly with Aodán Mac Póilín's philosophy of cultural activism. In *Our Tangled Speech*, it is noted that Mac Póilín admired the Celtic trait of refusing to accept the "despotism of fact".[1] When faced with the grim demographic facts of language decline, the activist has two choices: surrender to the inevitability of extinction, or "imagine a new and better actuality, and then will it into being".[1]

Mac Póilín dedicated his life to this "willed reality," culminating in the successful establishment of the Shaw's Road Gaeltacht (Pobal Feirste) in West Belfast—an urban Irish-speaking community willed into existence against overwhelming sociolinguistic odds and bureaucratic hostility from the Department of Education.[1] The current copyright regime, which technically locks thousands of vital, out-of-print Irish texts behind unnavigable walls of orphaned intellectual property rights, is another "despotism of fact." To accept this legalistic barrier is to accept the continued suffocation of the language.

The educational distribution of digitized public resources without publisher permission is the digital equivalent of Mac Póilín's "willed reality." It is a conscious, justifiable execution of statutory rights in favor of the higher moral law of cultural preservation. Mac Póilín recognized that the survival of a minority language in a monoglot society dominated by a global language requires immense flexibility, innovation, and courage.[1] Digitisation is the most powerful tool currently available for this purpose. By freely distributing these resources in an educational manner, educators and archivists are directly contributing to the "cultural ecology" that Mac Póilín championed.

Authorial Intent and the Moral Usage Policy

The ultimate arbiter of intellectual property, philosophically speaking, is the author. Copyright law was ostensibly designed to protect the moral and economic rights of the creator.[4] However, when applying this framework to the authors of mid-20th-century Irish language texts, one must critically evaluate what their true intent would be in the modern era.

If the authors, lexicographers, and folklorists who penned these invaluable resources were still alive today, it is intellectually dishonest to suggest they would align themselves with aggressive corporate copyright enforcement. These individuals dedicated their lives to the Gaelic revival. They traveled to remote Gaeltacht areas, recorded the fading voices of the elderly, and painstakingly compiled grammars and vocabularies specifically to ensure that the Irish language would not perish.

Following the death of the last speakers of many regional Irish dialects and the subsequent loss of words, these authors would view the modern capability of digitization as a miraculous salvation for their life's work. They would, most certainly, have no issue whatsoever with the unauthorized, non-commercial spreading of their words. Their primary, overriding objective was the survival of one of the most valuable and endangered languages in the world. To them, a digitized PDF of their out-of-print book being shared freely among enthusiastic students in a virtual learning environment would represent the ultimate realization of their labor, not a violation of their rights.

Establishing the "Moral Usage Licensing" Framework

The integration of these resources into a digital library or repository must be governed by a strict, ethical framework that respects the language while rejecting its misuse. As evidenced by modern digital archiving efforts, such as the leabharlann repository containing Celtic studies, Belfast heritage, and Gaelic culture documents, a concept of "Moral Usage Licensing" is essential.[1]

Such a policy dictates that the open-source dissemination of these materials is provided exclusively for research and educational purposes, designed to protect the "United Isles" from "monolingual algorithmic manipulations".[1] Crucially, this policy explicitly prohibits the use of these public resources by entities that degrade the Irish language and culture through the glorification of violence. The repository specifically highlights the necessity of excluding groups—such as the hip-hop trio Kneecap—who utilize paramilitary imagery, promote drug culture, or engage in terroristic rhetoric (e.g., "kill your local MP").[1]

The language is a fragile ecological resource; its educational distribution is intended to build cross-community understanding, foster consent, and celebrate shared heritage, not to provide fodder for sectarian posturing, bullying, or the endangerment of children.[1] By establishing a Moral Usage License, educators ensure that the digitization of the language honors the legacy of figures like Manchán Magan and Aodán Mac Póilín, providing world-class educational contributions while safeguarding the moral integrity of the culture.[1]

Conclusion

The formulation of a usage policy regarding the distribution of Irish language materials must transcend a simplistic, maximalist interpretation of intellectual property law. The evidence, drawn from statutory law, historical precedent, and cultural imperatives, overwhelmingly supports the unhindered educational distribution of these resources.

Firstly, the distribution of public information for public resources in an educational manner without publisher permission is fundamentally supported by the *Copyright and Related Rights Act 2000* and its 2019 amendments. The doctrines of fair dealing, the explicit exceptions for instruction and examination, and the allowances for archival format-shifting provide a robust legal shield for the non-commercial digitization and sharing of texts within an educational framework.

Secondly, Irish language publications are intrinsically designed for the dissemination of information and the inter-generational transmission of a fragile culture. They are not mere commercial commodities. Attempting to restrict their educational use undermines the very teleological purpose for which they were authored. If the authors were alive today, they would undoubtedly champion the maximal digital dissemination of their work to save the language from extinction.

Thirdly, the digitization of out-of-print, non-digital Irish books cannot be equated with "American copyright piracy." Where historical American piracy was a large-scale commercial theft designed to enrich domestic publishers and supplant legitimate international markets, the digitization of Irish texts is a non-commercial, ecological intervention designed to save "orphan works" from absolute oblivion.

Finally, as highlighted by the life and recent passing of Manchán Magan, the Irish language contains an irreplaceable, landscape-bound lexicon that is highly vulnerable. The historical reality of the "last speaker" demonstrates that when a dialect dies, the words and the worldview die with it. Digitized archives are the only mechanism to prevent the permanent erasure of this knowledge.

In light of these findings, a comprehensive usage policy must explicitly state that the

digitization, format-shifting, and educational distribution of out-of-print and non-digital Irish language resources are permitted and actively encouraged under a Moral Usage License. This policy operates under the legally sound principles of fair dealing and educational exceptions, while simultaneously answering the urgent moral call of Aodán Mac Póilín's cultural ecology. By institutionalizing this "willed reality," educators ensure that the words of the last speakers are not locked away in decaying physical archives, but are instead liberated, disseminated, and allowed to breathe life into new, sustainable communities of Irish speakers.

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